

AGREEMENT TO SELL

This Agreement to Sell (hereinafter referred to as the “**Agreement**”) is executed at Gurugram on **16 September 2026**.

between

1) **Mrs. Nisha Kapoor**, W/o Mr. Rajesh Kapoor, and 2) **Mr. Arvind Kapoor**, both residing at **House No. 47, Palm Enclave, Sector 72, Gurugram, Haryana - 122004** (hereinafter jointly referred to as the “**Seller/First Party**”) of the One Part.

IN FAVOUR OF

1) **Mr. Aditya Sharma**, S/o Mr. Mahesh Sharma, and 2) **Mrs. Neha Sharma**, W/o Mr. Aditya Sharma, both residing at **Flat 904, Maple Heights, Sector 65, Gurugram, Haryana - 122018** (hereinafter referred to as the “**Buyer/Second Party**”) of the Second Part.

The terms “Seller/First Party” and “Buyer/Second Party”, unless repugnant to the context or meaning thereof, shall be deemed to mean and include them, their respective legal heirs, successors, representatives, nominees and permitted assigns.

Hereinafter, the First Party and the Second Party shall be jointly referred to as the “Parties”.

WHEREAS:

A. The First Party has been allotted a unit No. **GRV-D-F05-408** (hereinafter referred to as the “Said Apartment”) under Sales Order # **700321** in the project “**Greenview Residences**” located in **Sector-67, Gurugram**, developed by **Bluecrest Realty Pvt. Ltd.** (hereinafter referred to as the “Said Project”). The total saleable area is **1,480 sq. ft. (137.50 sq. m.)**.

BY AND AMONGST:

BLUECREST REALTY PVT. LTD., a company incorporated under applicable laws, having its registered office at **21, Meridian Business Park, Golf Course Extension Road, Gurugram, Haryana - 122011**, hereinafter referred to as the “Developer” or “Company”, which expression shall include its representatives, group companies, affiliates, associates, holding companies, parent companies, nominees and successors, and forming part of this Agreement of the ONE PART.

AND

M/s. Horizon Promoters Private Limited, a company incorporated under applicable laws, having its registered office at **12-B, Sapphire Avenue, Sector 44, Gurugram, Haryana - 122003**, acting through its authorized signatory, hereinafter referred to as “HPPL” (which expression shall include its successors-in-interest, liquidators, assigns, representatives, group companies, affiliates, holding companies, parent companies, nominees and successors), of the **SECOND PARTY**;

AND

M/s. Crest Infrastructure Private Limited, a company incorporated under applicable laws, having its registered office at **8, Green Park Plaza, Sector 18, Gurugram, Haryana - 122015**, acting through its authorized signatory, hereinafter referred to as “CIPL” (which expression shall include its successors-in-interest, liquidators, assigns, representatives, group companies, affiliates, associates, holding companies, parent companies, nominees and successors), of the **THIRD PARTY**;

AND

1) **Mr. Aditya Sharma**, S/o Mr. Mahesh Sharma, and 2) **Mrs. Neha Sharma**, W/o Mr. Aditya Sharma, both residing at **Flat 904, Maple Heights, Sector 65, Gurugram, Haryana - 122018**, hereinafter referred to as the “Builder Buyer Agreement” and annexed as Schedule-1. The revised area of the Said Apartment is **1,480 sq. ft. (137.50 sq. m.)**. It was allotted at a Net Basic Sale Price of **INR 6,250/- per sq. ft.**, at a total Net Sale Price of **INR 92,50,000/-**.

B. The Said Apartment has been handed over to the First Party and the First Party is in complete possession of the Said Apartment after making full and final payment to the Builder.

C. The First Party has agreed to sell, transfer and convey all his/her right, title(s), interest and claims in the Said Apartment to the Second Party and the Second Party, after satisfying itself, is willing to buy the Said Apartment from the First Party on the consideration and terms and conditions arrived at after mutual negotiations and reduced in writing hereunder in this Agreement.

NOW THE AGREEMENT TO SELL WITNESSETH AS UNDER:

1. The First Party has agreed to sell, transfer and convey all his/her rights, title, interest and claims in the Said Apartment to the Second Party at an all-inclusive total sale consideration of **INR 1,85,00,000/-** (Rupees One Crore Eighty-Five Lakhs Only) (hereinafter referred to as the “**Total Sale Consideration**”) which includes PLC, EDC/IDC, two-car parking, IFMS, applicable taxes and all other agreed charges.

PAYMENT TERMS

2. Of the Total Sale Consideration, the Second Party has already paid an advance sum of **INR 5,00,000/-** (Five Lakhs Only) to the First Party via Cheque No. **482761** dated **08 September 2026**, drawn on a scheduled bank. Both the Parties have agreed to sign the sale agreement upon payment of 10% of the total sale value, which is **INR 18,50,000/-**, less the amount already paid in advance.
3. Of the Total Sale Consideration, the Second Party will deduct Tax (1% TDS) at source amounting to **INR 1,85,000/-** as per applicable laws and the balance payment of **INR 1,66,65,000/-** shall be paid by the Second Party to the First Party on or before execution of the Sale Deed.
4. The TDS deduction (1% of total sale value) and the said payment will be made equally to both the beneficiaries/sellers.
5. Both the Parties have mutually agreed to conclude the transaction within 45 days from the date of signing this Agreement, which shall be on or before **31 October 2026**.
6. The Second Party shall pay to the First Party the Net Sales Consideration in the following manner:

Date	Amount	In Favor Of	Description
08-Sep-2026	INR 5,00,000	Mrs. Nisha Kapoor	On signing the Earnest Money Document (Bayana).
16-Sep-2026	INR 13,50,000	Mrs. Nisha Kapoor & Mr. Arvind Kapoor	On signing the Agreement to Sell.
31-Oct-2026	INR 92,500	TDS — Mrs. Nisha Kapoor; PAN: SYNTHETIC-PAN-01	50% of TDS challan to be shared with Seller.
31-Oct-2026	INR 92,500	TDS — Mr. Arvind Kapoor; PAN: SYNTHETIC-PAN-02	50% of TDS challan to be shared with Seller.
31-Oct-2026	INR 1,66,65,000	Favoring Mrs. Nisha Kapoor & Mr. Arvind Kapoor	Full & final payment on or before registration of property.

7. The payments made by the Second Party via cheque shall be subject to realization. Any default in payment/realization of cheques shall entitle the First Party to cancel the Agreement and the agreed terms.
8. The First Party shall arrange all documentation, approvals, loan-clearance certificate, no-encumbrance certificate from the bank and all other formalities required for transfer of the Said Apartment in favor of the Second Party or its nominee, as the case may be.

TERMS AND CONDITIONS

9. In the event the First Party and/or the Developer does not co-operate or does not transfer the ownership of the Said Apartment for any reason whatsoever in the name of the Second Party, then the First Party shall refund all amounts received from the Second Party till date without prejudice to any legal remedy available to the First Party.
10. On the payment of agreed consideration as per Paragraph 6 hereinabove, the Second Party shall stand duly discharged from its obligations under this Agreement.
11. The First Party shall complete all necessary formalities required for the registration of the Said Apartment, including those before the concerned officers of the Authorities, within the time stipulated by the Second Party.
12. The First Party assures and represents that there are no charges, liens, home loans, encumbrances, court proceedings, family disputes or third-party interests created with respect to the Said Apartment and that the First Party has clear and marketable title to the Said Apartment and all legal right to sell the Said Apartment. The First Party covenants that it shall not do any act, deed or thing creating any charge, lien or encumbrance in respect of the Said Apartment.
13. If any of the above assurances extended by the First Party is found to be incorrect and the Second Party suffers any loss, the First Party hereby agrees to return the full amount paid by the Second Party and undertakes to keep the Second Party indemnified against such losses and damages.
14. On the transfer of the Said Apartment in the name of the Second Party, the First Party would have relinquished all right, title, interest and claims of any kind whatsoever in the Said Apartment in favor of the Second Party and shall be restrained for all times to raise any claim including a third-party claim on the Said Apartment.
15. With the due execution of this Agreement, the Second Party shall be vested with all rights to get the Said Apartment transferred in their name and take possession of, alienate/dispose-off or transfer the Said Apartment in any manner whatsoever and get the sale deed or necessary documents registered in their or their nominees' name.
16. In the event the First Party raises any claim/interest/right on the Said Apartment after the transfer of the Said Apartment in the name of the Second Party, then the same shall be unsustainable under law and the First Party agrees to indemnify the Second Party from any loss, damage or injury so occurred.
17. The First Party shall pay all outstanding dues, taxes, fees etc. pertaining to the Said Apartment till the handover of the apartment.
18. The Second Party shall pay all fees, stamp duties, challans, processing fees and administrative expenses at the time of registration of the Said Apartment.
19. For any communication regarding the Said Property, the First Party shall communicate with the Second Party at **Flat 904, Maple Heights, Sector 65, Gurugram, Haryana - 122018**. The Second Party shall communicate with the First Party at **House No. 47, Palm Enclave, Sector 72, Gurugram, Haryana - 122004**.

FURTHER TERMS

20. Both FIRST PARTY & SECOND PARTY agree to pay consultation charges at 1% of the Total Sale Consideration, plus applicable GST as per applicable laws, to **M/s. Meridian Compliance Advisors Pvt. Ltd.**, having its office at **Office 302, Orion Tower, Sector 32, Gurugram, Haryana - 122001**, holding synthetic test registration reference **Synthetic Test License 017/2026**.

21. Both the First Party and Second Party agree that all the terms and conditions of this Agreement are irrevocable. In the event of disputes, if any, this Sale Agreement shall be subject to the jurisdiction of the Courts in Gurugram, Haryana.

22. The Parties are capable and have executed this Agreement of their free will and consent and after well going through the terms and conditions.

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IN WITNESS WHEREOF, the Parties hereto have signed the Agreement on the day, month and year first above written, in the presence of the following witnesses:

SIGNATURES & WITNESSES

Signed for and on behalf of THE FIRST PARTY

- 1. Mrs. Nisha Kapoor
- 2. Mr. Arvind Kapoor

Signature: _____

Signed for and on behalf of THE SECOND PARTY

- 1. Mr. Aditya Sharma
- 2. Mrs. Neha Sharma

Signature: _____

In the presence of following witness(es):

No.	Witness Name	Address	Signature
1	Mr. Vikram Sethi	House No. 18, Cedar Lane, Sector 66, Gurugram, Haryana - 122005	_____
2	Ms. Kavya Menon	House No. 203, Rosewood Enclave, Sector 70, Gurugram, Haryana - 122004	_____

Synthetic document note: all names, addresses, amounts, dates, company names, identifiers and transaction details in this filled copy are fictitious and intended solely for testing a deal-review multi-agent system.